

**FEDERAL MARITIME COMMISSION**  
**Office of Administrative Law Judges**

MCS INDUSTRIES, INC., *Complainant*

v.

COSCO SHIPPING LINES CO., LTD. AND MSC  
MEDITERRANEAN SHIPPING COMPANY SA, *Respondents.*

**DOCKET NO. 21-05**

Served: June 8, 2022

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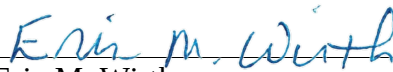
**ORDER OF:** Erin M. WIRTH, *Chief Administrative Law Judge.*

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**ORDER REQUIRING JOINT STATUS REPORT**

On June 3, 2022, complainant MCS Industries, Inc. (“MCS Industries”) and respondent MSC Mediterranean Shipping Company SA (“MSC Mediterranean Shipping”) filed a joint status report addressing the status of discovery and a proposed schedule. The request for discovery has been translated and transmitted to the authorities in Switzerland and the parties are exchanging discovery. Complainant proposed a schedule while Respondents propose waiting for a response from the Swiss authorities.

Given the uncertainty of the Swiss discovery process, a schedule will not be implemented at this time. The parties should file a joint status report on July 15, 2022, and the 15th of each month thereafter, providing updates on the progress of discovery. In addition, if the parties receive a response from the Swiss authorities, they should promptly file a notice advising of the response.

  
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Erin M. Wirth  
Chief Administrative Law Judge